

PROPOSED
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1531
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 23-1062, Arizona Revised Statutes, is amended
3 to read:

4 23-1062. Medical, surgical and hospital benefits; translation
5 services; travel expenses; commencement of
6 compensation; method of compensation; prohibition

7 A. Promptly, on notice to the employer, every injured employee
8 shall receive medical, surgical and hospital benefits or other treatment,
9 nursing, medicine, surgical supplies, crutches and other apparatus,
10 including artificial members, reasonably required at the time of the
11 injury, and during the period of disability. Such benefits shall be
12 termed "medical, surgical and hospital benefits". FOR THE PURPOSES OF
13 THIS SUBSECTION AND EXCEPT AS PROVIDED IN SECTION 23-908, SUBSECTION F AND
14 SECTION 23-1070, AN INJURED EMPLOYEE MAY CHOOSE ALL OF THE FOLLOWING THAT
15 ARE RELATED TO MEDICAL, SURGICAL AND HOSPITAL BENEFITS:

- 16 1. THE MEDICAL PROVIDER.
17 2. THE PHARMACY THAT PROVIDES PRESCRIPTION DRUGS.
18 3. ANY ANCILLARY SERVICES THAT INCLUDE:
19 (a) LABORATORY SERVICES.
20 (b) IMAGING SERVICES.
21 (c) DURABLE MEDICAL EQUIPMENT.

22 B. Medical, surgical and hospital benefits include translation
23 services, if needed. A carrier, self-insurance pool or employer that does
24 not direct care pursuant to section 23-1070 may choose the translator if
25 the translator is certified by an outside agency and is not an employee of
26 the carrier, self-insurance pool or employer. If the carrier,
27 self-insurance pool or employer is unable to locate a certified translator
28 for the particular language or dialect needed, the parties may agree on a
29 translator who is not a certified translator.

30 C. Compensation for medical, surgical and hospital benefits shall
31 include reimbursement for reasonable travel expenses if the employee must
32 travel more than twenty-five miles from the employee's place of residence
33 to obtain medical care for the injury.

34 D. The first installment of compensation is to be paid ~~no~~ NOT later
35 than the twenty-first day after written notification by the commission to
36 the carrier of the filing of a claim unless the right to compensation is
37 denied. Thereafter, compensation shall be paid at least once each two
38 weeks during the period of temporary total disability and at least monthly
39 thereafter. Compensation shall not be paid for the first seven days after

1 the injury. If the incapacity extends beyond the period of seven days,
2 compensation shall begin on the eighth day after the injury, but if the
3 disability continues for one week beyond such seven days, compensation
4 shall be computed from the date of the injury.

5 E. Compensation shall be made by negotiable instrument, payable
6 immediately on demand or, at the election of the employee and if offered
7 by the employer or carrier, by another commonly accepted method for
8 transferring money by banking institutions, including electronic fund
9 transfers to the employee's account or a prepaid debit card account that
10 is established for the purpose of making direct electronic payment to the
11 employee.

12 F. AN INSURER, PHARMACY BENEFITS MANAGER OR EMPLOYER OR AN AGENT OR
13 REPRESENTATIVE OF THE INSURER, PHARMACY BENEFITS MANAGER OR EMPLOYER MAY
14 NOT CIRCUMVENT OR UNDERMINE AN INJURED EMPLOYEE'S CHOICE OF A PROVIDER TO
15 ADMINISTER MEDICAL, SURGICAL AND HOSPITAL BENEFITS UNDER THIS SECTION."

16 Amend title to conform

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